

Mohammad Wasim v. State of U.P. and Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 17 March 2023 · WRIT - C No. 277 of 2023 ·
Writ disposed; arrears dispute relegated to Executive Engineer under clause 6.5

HEADNOTE

Writ against recovery of disputed electricity arrears disposed of. The consumer may apply within one week to the Executive Engineer under Paragraph 6.5 of the U.P. Electricity Supply Code, 2005; the Engineer shall decide under Paragraph 6.5(b) within seven days. Recovery stays for two weeks or until that decision, only if the application is filed within the week.

FACTUAL SUMMARY

Mohammad Wasim filed a writ against the State of U.P. and the electricity respondents, challenging arrears shown in his electricity bills for which recovery proceedings had been initiated. He disputed those bills and the arrears. Counsel for respondent nos. 2 to 4, on instructions, stated that at least four meters had been installed one after another at his premises and that the arrears related to an earlier time when those meters were replaced. The Court perused the pleadings and recorded that this billing dispute was the grievance.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Disputed electricity arrears relegated under clause 6.5

HOLDING

A consumer who disputes arrears shown in his electricity bills, and the recovery proceedings initiated on them, has a statutory remedy under Paragraph 6.5 of the Electricity Supply Code, 2005. He may apply to the Executive Engineer of the Division concerned within one week from the order. If such an application is made, the Executive Engineer shall decide it within seven days under Paragraph 6.5(b). Recovery proceedings remain stayed for two weeks or until that decision, and this benefit is available only if the application is filed within the week. The writ petition stands disposed of on those terms. ¶ 2

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill The petitioner disputed arrears in his bills for which recovery had begun. The writ was disposed of, leaving him to the statutory remedy under Paragraph 6.5. ¶ 2

clause-6.5-representation-executive-engineer He was permitted to apply to the Executive Engineer of the Division concerned within one week of the order. ¶ 2

clause-6.5-pending-representation-to-be-decided If the application is filed within a week, the Executive Engineer shall decide it within seven days under Paragraph 6.5(b). ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ARREARS, SAID TO RELATE TO PERIODS WHEN SUCCESSIVE METERS WERE REPLACED, ARE PAYABLE

Left to the Executive Engineer under Paragraph 6.5(b) if the petitioner applies within a week ¶ 2